

EMPLOYEE GRIEVANCE MACHINERY POLICY

Rationale

A peaceful work environment promotes employee morale and efficiency, leading to higher productivity. Thus, the University of Mindanao is committed to establish industrial peace in the organization. In fulfillment with said commitment, the University hereby establishes this grievance machinery that will address and resolve complaints and grievances raised by employees expeditiously and effectively in order to eliminate or reduce employee dissatisfaction and minimize work disruption.

Objectives

1.General

To promote harmonious labor-management relations resulting in employee satisfaction.

2.Specific

- Establish an orderly procedure for handling disputes
- Prevent dissatisfaction of employee
- Settle disputes at the lowest level possible
- Settle disputes speedily in order to minimize work disruption

Scope

The grievance machinery applies to all employees of the University, except Administration Officials, Branch Directors, Deans and Department Heads. The following cases shall not be covered by the grievance machinery:

1. disciplinary cases, and
2. sexual harassment cases.

Definition of Terms

Grievance is any question or complaint pertaining to the terms and conditions of employment, or to the interpretation or implementation of company personnel policies.

Grievance procedure refers to the formal steps to be undertaken in the resolution of grievances.

Guiding Principles

- Grievances must be resolved expeditiously. Thus, grievances must be resolved at the lowest level possible and shall not be bound by formal legal rules and technicalities. Even verbal grievances must be acted upon. Also, services of legal counsel shall not be allowed.
- Employees have the right to an impartial resolution of their grievances.

- Complainants and their witnesses are protected from retaliation, discrimination and harassment.
- Complainants have the right to appeal decisions.

Grievance Procedure

Step 1. The aggrieved employee initially presents their grievance, either orally or in writing, to their immediate supervisor. The supervisor has two working days to respond to the employee, orally or in writing, with their decision. If the grievance involves the supervisor directly, the employee can approach the next higher ranking supervisor.

Officials or supervisors who refuse to take action on a grievance brought to their attention shall be liable for neglect of duty.

Step 2. If unsatisfied with the decision of the supervisor, the aggrieved employee can submit a written grievance to the Grievance Committee within two working days from receipt of the decision. The Committee has five working days from receipt of the written grievance to conduct an investigation and, if necessary, a hearing. The Committee has five working days from conclusion of the investigation or hearing to resolve the grievance. The decision shall be in writing and served on the parties involved.

Step 3. Any party aggrieved by the decision of the Grievance Committee may appeal the same in writing to the University President within three working days from receipt of the decision. The University President has five working days from receipt of the appeal to resolve the same. The decision of the President shall be in writing and served on the parties involved.

Grievance Committee

The Grievance Committee shall be composed of the following:

A. For the Main Campus

- Head of the HRMDO – Chair
- Chief Administrative Officer
- Dean of the College, if the aggrieved employee is a teaching personnel, or Head of the Department, if the aggrieved employee is a non-teaching personnel
- President of the Faculty Club
- Representative from the non-teaching personnel

B. For the Branches

- Branch Director – Head
- Dean of the College, if the aggrieved employee is a teaching personnel, or Head of the Department, if the aggrieved employee is a non-teaching personnel
- President of the Faculty Club
- Representative from the non-teaching personnel
- Head of HRMDO in the branch

Signed:

(SGD) GUILLERMO P. TORRES, JR.
University President

Reference

OPM 21.12 – Employee Grievance Machinery; Effective: Nov. 15, 2016; Rev. 2,
Labor Code of the Philippines